



My Health Record (Share by Default) Rules 2025

I, Mark Butler, Minister for Health and Ageing, make the following rules.

Dated 09 December 2025

Mark Butler
Minister for Health and Ageing

Contents

Part 1—Preliminary	1
1 Name	1
2 Commencement.....	1
3 Authority	1
4 Definitions.....	1
Part 2—Sharing health information by default	3
Division 1—Diagnostic imaging services	3
5 Diagnostic imaging services—prescribed healthcare provider organisations.....	3
6 Diagnostic imaging services—kinds of healthcare	3
7 Diagnostic imaging services—information to be shared with the My Health Record system	3
8 Diagnostic imaging services—period for sharing information with the My Health Record system.....	4
9 Diagnostic imaging services—kinds of health information that may be collected, used or disclosed.....	4
Division 2—Pathology services	5
10 Pathology services—prescribed healthcare provider organisations.....	5
11 Pathology services—kinds of healthcare	5
12 Pathology services—information to be shared with the My Health Record system.....	6
13 Pathology services—period for sharing information with the My Health Record system	6
14 Pathology services—kinds of health information that may be collected, used or disclosed.....	6

Part 1—Preliminary

1 Name

This instrument is the *My Health Record (Share by Default) Rules 2025*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	1 July 2026.	1 July 2026

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under the *My Health Records Act 2012*.

4 Definitions

Note: A number of expressions used in this instrument are defined in the Act, including the following:

- (a) healthcare;
- (b) healthcare provider organisation;
- (c) My Health Record system.

In this instrument:

Act means the *My Health Records Act 2012*.

diagnostic imaging premises has the same meaning as in the Health Insurance Act.

diagnostic imaging service has the same meaning as in the Health Insurance Act.

Health Insurance Act means the *Health Insurance Act 1973*.

medicare benefit has the same meaning as in the Health Insurance Act.

pathologist means a medical practitioner:

Section 4

- (a) recognised as a specialist in pathology under subsection 3D(1) of the Health Insurance Act; or
- (b) recognised as a specialist in pathology by a determination under paragraph 3DB(4)(a) or subsection 3E(1) of the Health Insurance Act that is in effect; or
- (c) who is an approved pathology practitioner (within the meaning of the Health Insurance Act).

pathology service has the same meaning as in the Health Insurance Act.

proprietor, in relation to a pathology laboratory or diagnostic imaging premises, has the same meaning as in the Health Insurance Act.

radiologist means a medical practitioner recognised as a specialist in diagnostic radiology:

- (a) under subsection 3D(1) of the Health Insurance Act; or
- (b) by a determination under paragraph 3DB(4)(a) or subsection 3E(1) of the Health Insurance Act that is in effect.

R-type diagnostic imaging service has the same meaning as in the Health Insurance Act.

Part 2—Sharing health information by default

Division 1—Diagnostic imaging services

5 Diagnostic imaging services—prescribed healthcare provider organisations

For the purposes of paragraph (b) of the definition of *prescribed healthcare provider organisation* in section 5 of the Act, a proprietor of diagnostic imaging premises at which healthcare of the kind specified in section 6 of this instrument is rendered by or on behalf of a radiologist is specified as a kind of healthcare provider organisation.

6 Diagnostic imaging services—kinds of healthcare

- (1) For the purposes of paragraph 78A(1)(b) of the Act, the following kinds of healthcare are specified for a proprietor of diagnostic imaging premises specified in section 5 of this instrument:
 - (a) an R-type diagnostic imaging service referred to in an item of the table in Part 2 of Schedule 1 to the *Health Insurance (Diagnostic Imaging Services Table) Regulations (No. 2) 2020* that is rendered by or on behalf of a radiologist, whether or not a medicare benefit is payable for the service;
 - (b) a medical service referred to in an item of the table in Part 4 of Schedule 1 to the *Health Insurance (General Medical Services Table) Regulations 2021* that is rendered by or on behalf of a radiologist, whether or not a medicare benefit is payable for the service;
 - (c) a health service that:
 - (i) under a determination in force under subsection 3C(1) of the Health Insurance Act is treated as if it were an item in a table mentioned in paragraph (a) or (b) of this subsection related to the health service; and
 - (ii) is rendered by or on behalf of a radiologist, whether or not a medicare benefit is payable for the service;
 - (d) any other kind of healthcare rendered by or on behalf of a radiologist for which a report is created.
- (2) Subsection (1) does not apply to a kind of healthcare that is rendered for any of the following purposes:
 - (a) workplace drug or alcohol testing;
 - (b) court ordered testing;
 - (c) law enforcement.

7 Diagnostic imaging services—information to be shared with the My Health Record system

- (1) For the purposes of subsection 78A(1) of the Act, the specified information for the kind of healthcare specified in section 6 of this instrument is information that is included in a report or other document that is:
 - (a) created in relation to that kind of healthcare; and

Section 8

- (b) authorised by the radiologist who rendered the healthcare, or on whose behalf the healthcare was rendered.

- (2) Subsection (1) does not apply to images.

8 Diagnostic imaging services—period for sharing information with the My Health Record system

- (1) For the purposes of subsection 78A(1) of the Act, this section specifies the period within which information specified in section 7 of this instrument must be shared with the My Health Record system.
- (2) The specified period is the period of 24 hours beginning at the time the information is first provided to any of the following:
 - (a) the healthcare provider who requested the healthcare to which the information relates;
 - (b) the healthcare provider who is treating the healthcare recipient to whom the information relates;
 - (c) the healthcare recipient to whom the information relates.

9 Diagnostic imaging services—kinds of health information that may be collected, used or disclosed

For the purposes of paragraph 70AA(3)(b) of the Act, the following kinds of health information are specified:

- (a) the type of a report or other document mentioned in this Division;
- (b) the time at which, and the date on which, a diagnostic imaging service mentioned in this Division is requested or rendered.

Division 2—Pathology services

10 Pathology services—prescribed healthcare provider organisations

For the purposes of paragraph (b) of the definition of ***prescribed healthcare provider organisation*** in section 5 of the Act, a proprietor of a pathology laboratory at which healthcare of the kind specified in section 11 of this instrument is rendered by or on behalf of a pathologist is specified as a kind of healthcare provider organisation.

11 Pathology services—kinds of healthcare

- (1) For the purposes of paragraph 78A(1)(b) of the Act, the following kinds of healthcare are specified for a proprietor of a pathology laboratory specified in section 10 of this instrument:
 - (a) a pathology service referred to in an item of the table in Part 2 of Schedule 1 to the *Health Insurance (Pathology Services Table) Regulations 2020* that is rendered by or on behalf of a pathologist, whether or not a medicare benefit is payable for the service;
 - (b) a health service that:
 - (i) under a determination in force under subsection 3C(1) of the Health Insurance Act is treated as if it were an item in the table mentioned in paragraph (a) of this item related to the health service; and
 - (ii) is rendered by or on behalf of a pathologist, whether or not a medicare benefit is payable for the service;
 - (c) any other kind of healthcare rendered by or on behalf of a pathologist for which a report is created.
- (2) Subsection (1) does not apply to a kind of healthcare that is rendered for any of the following purposes:
 - (a) workplace drug or alcohol testing;
 - (b) court ordered testing;
 - (c) law enforcement.
- (3) Subsection (1) does not apply to a kind of healthcare:
 - (a) that is performed for the sole purpose of a research study or a clinical trial; and
 - (b) in respect of which information of the kind described in section 12 is not provided to either of the following:
 - (i) a healthcare provider who is treating the healthcare recipient to whom the information relates;
 - (ii) the healthcare recipient to whom the information relates.

Section 12

12 Pathology services—information to be shared with the My Health Record system

For the purposes of subsection 78A(1) of the Act, the specified information for the kind of healthcare specified in section 11 of this instrument is information that is included in a report or other document that is:

- (a) created in relation to that kind of healthcare; and
- (b) authorised by the pathologist who rendered the healthcare, or on whose behalf the healthcare was rendered.

13 Pathology services—period for sharing information with the My Health Record system

- (1) For the purposes of subsection 78A(1) of the Act, this section specifies the period within which information specified in section 12 of this instrument must be shared with the My Health Record system.
- (2) The specified period is the period of 24 hours beginning at the time the information is first provided to any of the following:
 - (a) the healthcare provider who requested the healthcare to which the information relates;
 - (b) the healthcare provider who is treating the healthcare recipient to whom the information relates;
 - (c) the healthcare recipient to whom the information relates.

14 Pathology services—kinds of health information that may be collected, used or disclosed

For the purposes of paragraph 70AA(3)(b) of the Act, the following kinds of health information are specified:

- (a) the type of a report or other document mentioned in this Division;
- (b) the time at which, and the date on which, a pathology service mentioned in this Division is requested or rendered.